

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 05/08/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and

SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

<https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1>

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C22-01891

CASE NAME: ARIEL RODREGOUS VS. DOES 1-30

***HEARING ON MOTION FOR DISCOVERY COMPEL MENTAL HEALTH EXAMINATION OF PLAINTIFF
FILED BY: ANTIOCH UNIFIED SCHOOL DISTRICT**

TENTATIVE RULING:

1. Plaintiff will submit to a mental health examination conducted by Dr. Richard Shaw.
2. The length of the mental health examination will not exceed seven (7) hours, excluding breaks. If the examination is not completed by the end of one business day and the seven hours (excluding breaks) has not passed, the examination will continue

day to day (excluding weekends and holidays) until the seven (7) hours is completed.

3. By noon on May 22, 2026, Plaintiff will provide Defendant Antioch Unified School District with five dates between June 1, 2026 and July 17, 2026 on which she will be available for the mental health examination by Dr. Shaw.
4. Plaintiff will submit to a neurological examination by Dr. Graham Fisher at Leone Alberts & Duus, located at 1390 Willow Pass Rd., Ste 700, Concord, CA 94520.
5. Dr. Fisher's examination may take up to 75 minutes.

2. 9:00 AM CASE NUMBER: C24-00442

CASE NAME: JORGE DUARTE VS. CARLOS AVALOS

HEARING ON SUMMARY MOTION

FILED BY: CSAA INSURANCE EXCHANGE

TENTATIVE RULING:

The hearing on this matter is **continued on the court's motion to October 2, 2026** at 9:00 a.m. in Dept. 32.

3. 9:00 AM CASE NUMBER: C24-00442

CASE NAME: JORGE DUARTE VS. CARLOS AVALOS

HEARING ON SUMMARY MOTION

FILED BY: DUARTE, JORGE

TENTATIVE RULING:

The hearing on this matter is **continued on the court's motion to October 2, 2026** at 9:00 a.m. in Dept. 32.

4. 9:00 AM CASE NUMBER: C24-01590

CASE NAME: TIMOTHY CLANCY VS. ANTHONY JURADO

***HEARING ON MOTION IN RE: STRIKE PUNITIVE DAMAGES FROM 1ST AMENDED COMPLAINT**

FILED BY: JURADO, ANTHONY

TENTATIVE RULING:

The motion of Defendants Anthony and Paula Jurado to strike punitive damages allegations in Plaintiff Timothy F. Clancy's first amended complaint is **denied**.

Background

This case involves adjoining properties on opposite sides of Tassajara Creek. Plaintiff Timothy Clancy owns the 32.4-acre property at 7090 Camino Tassajara, and Defendants Anthony and Paula Jurado own the property directly across the creek at 7150 Camino Tassajara. (FAC ¶¶ 12–14, 23.) The First Amended Complaint (FAC) filed on December 10, 2025 asserts causes of